

SENATE BILL No. 254

DIGEST OF INTRODUCED BILL

Citations Affected: IC 21-22; IC 21-41-5.

Synopsis: Ivy Tech Community College. Consolidates duties and responsibilities for Ivy Tech Community College (college). Includes logistics, information technology, and life sciences as areas of expertise for members of the college's board of trustees (board). Provides that members of a campus board may represent an employer that operates within the campus service area. Provides that the campus board, in collaboration with the campus chancellor, shall nominate and submit candidate names in the event of a campus board vacancy. Requires the campus board to: (1) develop and recommend certain plans to the board; and (2) make certain budget recommendations to the campus chancellor. Realigns and consolidates the primary purposes of the college. Consolidates duties and responsibilities for the board. Repeals certain sections.

Effective: July 1, 2026.

Goode

January 8, 2026, read first time and referred to Committee on Education and Career Development.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 254

A BILL FOR AN ACT to amend the Indiana Code concerning higher education.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 21-22-3-3, AS AMENDED BY P.L.174-2018,
2 SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 3. (a) The number of members of the state board
4 of trustees must equal the number of regions established by the state
5 board of trustees plus one (1) additional member, but shall not exceed
6 fifteen (15) total members. The state board of trustees shall divide the
7 state of Indiana into regions. Each region shall be represented by one
8 (1) trustee. Each member of the state board of trustees must have
9 knowledge or experience in one (1) or more of the following areas:
10 (1) Manufacturing.
11 (2) Commerce.
12 (3) Labor.
13 (4) Agriculture.
14 **(5) Logistics.**
15 **(6) Information technology.**
16 **(7) Life sciences.**
17 ~~(5)~~ **(8) State and regional economic development needs.**



(6) (9) Indiana's ~~educational delivery~~ **education and workforce** system.

One (1) member must serve as an at-large member. Appointments shall be for three (3) year terms, on a staggered basis.

(b) An individual who holds an elective or appointed office of the state is not eligible to serve as a member of the state board of trustees. A member of a campus board may be appointed to the state board of trustees but must then resign from the campus board.

SECTION 2. IC 21-22-3-4, AS AMENDED BY P.L.174-2018, SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. The governor shall fill all vacancies on the state board of trustees. ~~All members of the state board of trustees who are serving on July 1, 2018, are entitled to serve until the ends of their terms.~~ At the end of a trustee's term or otherwise upon the occurrence of a vacancy, the governor may appoint a trustee in accordance with section 3 of this chapter.

SECTION 3. IC 21-22-6-3, AS AMENDED BY P.L.174-2018, SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. The campus board consists of at least seven (7) members, including at least five (5) members who are representative of ~~the manufacturing, commercial, agricultural, labor, and educational groups~~ **the knowledge or experience areas described in IC 21-22-3-3(1) through IC 21-22-3-3(9)** of the campus service area, all appointed by the state board of trustees. Membership may include a representative from a school corporation that has part of its district within the campus service area and at least one (1) Ivy Tech Community College student who is enrolled at the campus. All members of the campus board must be residents of the campus service area **or represent an employer that operates within the campus service area.** Appointments are for three (3) year terms, on a staggered basis, and all trustees must be citizens of Indiana. Members may serve for an unlimited number of terms.

SECTION 4. IC 21-22-6-4, AS AMENDED BY P.L.174-2018, SECTION 21, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. A vacancy on the campus board shall be filled by appointment by the state board of trustees. The campus board, **in collaboration with the campus chancellor**, shall nominate and submit to the state board the names of one (1) or more candidates to fill the vacancy within ninety (90) days after the vacancy occurs. The state board of trustees may appoint one (1) of the persons nominated by the campus board or may reject all of the nominees. If the state board of trustees rejects all of the nominees, the state board of trustees shall



1 notify the campus board, and the campus board shall make one (1) or
 2 more additional nominations within ninety (90) days after receipt of the
 3 notice. The state board of trustees shall then fill the vacancy from either
 4 the original group of nominations or from the additional nominations.

5 SECTION 5. IC 21-22-6-8, AS AMENDED BY P.L.174-2018,
 6 SECTION 25, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 7 JULY 1, 2026]: Sec. 8. A campus board shall do the following:

8 (1) Make a careful analysis of the educational needs and
 9 opportunities of the campus service area ~~including an analysis of~~
 10 ~~programs and pathways designed to meet workforce and employer~~
 11 ~~demand.~~ **in accordance with IC 21-41-5.**

12 (2) Develop and recommend to the state board of trustees a plan
 13 for providing postsecondary:

14 (A) general education;

15 (B) liberal arts education; and

16 (C) occupational and technical education;

17 programs and appropriate workforce development, assessment,
 18 and training services for the residents of that campus service area.

19 **(3) Develop and recommend to the state board of trustees a**
 20 **plan to:**

21 **(A) align postsecondary academic curriculum with**
 22 **employer needs;**

23 **(B) provide relevant skills training opportunities; and**

24 **(C) ensure college transferability;**

25 **for the residents of a campus service area.**

26 ~~(3) (4) Develop and recommend a~~ **Review the** budget for campus
 27 programs and operations, **and make recommendations to the**
 28 **campus chancellor for efficiencies in operation and alignment**
 29 **with campus service area needs.**

30 ~~(4) (5)~~ Identify and recommend methods to optimize the use of
 31 facilities and equipment to support programs and pathways
 32 designed to meet workforce and employer demand.

33 ~~(5) (6)~~ Facilitate and develop cooperation with employers,
 34 community leaders, economic development efforts, area career
 35 and technical education centers, and other public and private
 36 education and training entities ~~in order to provide postsecondary~~
 37 ~~general, liberal arts, and occupational and technical education and~~
 38 ~~training designed to meet to ensure alignment with~~ workforce
 39 and employer demand in an efficient and cost effective manner
 40 and to avoid duplication of services.

41 ~~(6) (7)~~ Determine through evaluation, studies, or assessments the
 42 degree to which the established training needs of the campus



service area are being met.

~~(7)~~ **(8)** Make recommendations to the state board of trustees concerning policies that appear to substantially affect the campus board's capacity to deliver effective and efficient programming.

SECTION 6. IC 21-22-6-10, AS AMENDED BY P.L.174-2018, SECTION 27, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. Before taking any action under IC 21-27-6-3, IC 21-27-6-4, IC 21-31-2-5, IC 21-38-3-7(2), or ~~IC 21-41-5-8~~ **IC 21-41-5-3** that would substantially affect a campus, the state board of trustees shall request recommendations concerning the proposed action from the campus board.

SECTION 7. IC 21-22-6-11, AS AMENDED BY P.L.174-2018, SECTION 28, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. Upon request of a campus board that has submitted recommendations under section ~~8(7)~~ **8(8)** or 10 of this chapter, the state board of trustees shall conduct public hearings concerning the recommendations at a regular or special meeting of the state board of trustees.

SECTION 8. IC 21-41-5-2, AS ADDED BY P.L.2-2007, SECTION 282, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. Ivy Tech Community College shall be devoted primarily to ~~providing~~ the following:

~~(1) The educational opportunities for the citizens of Indiana described in this chapter.~~

~~(2) (1) The assessment and training services described in this chapter. Serving as the workforce engine for the state of Indiana by aligning postsecondary academic curriculum with employer needs and ensuring that all academic degree offerings provide a pathway to direct entry into the workforce.~~

(2) Serving as an open access institution for high school students, adult learners, and high school graduates by:

(A) providing relevant training opportunities that allow individuals to:

(i) acquire necessary skills for specific jobs;

(ii) obtain certifications; or

(iii) improve the individual's work product; and

(B) providing dual credit and dual enrollment offerings described in IC 21-43.

(3) Promoting education and economic development by providing assessment and training services for the citizens of Indiana, including:



(A) determining the skills needed for specific jobs;
 (B) determining whether particular individuals have the skills needed to:

(i) do specific jobs; or
 (ii) qualify for specific skill certifications; and
 (C) developing and delivering training programs designed to help individuals:

(i) acquire the skills needed to do specific jobs;
 (ii) obtain specific skill certifications; or
 (iii) improve the quality of the individual's work product.

(4) Meeting the needs of state and local officials, employers, and labor organizations by designing and delivering educational and training courses and programs to provide economic and workforce development.

SECTION 9. IC 21-41-5-3, AS AMENDED BY P.L.141-2016, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) It is the primary purpose of Ivy Tech Community College to provide educational opportunities and appropriate workforce development, assessment, and training services to:

(1) employees of employers whose productivity and competitiveness will be enhanced by targeted employee education and training courses and programs delivered in the employer's workplace;

(2) students who require additional education before enrolling in college level courses at either a two (2) year or a four (4) year institution;

(3) individuals who have graduated from high school and are more interested in continuing their education in a general, liberal arts, occupational, or technical program at a two (2) year, nonresidential college;

(4) individuals who have graduated from high school and want to earn credits that will transfer to a four (4) year college;

(5) students who do not complete work at a four (4) year college or who are referred by a four (4) year college to Ivy Tech Community College;

(6) students who complete their work at a four (4) year college but would like to supplement that education to improve existing skills or acquire new skills; and

(7) adult workers who need and desire retraining or additional training of an occupational or technical nature for the workplace.

(b) (a) The board of trustees of Ivy Tech Community College shall



1 establish an administrative structure for Ivy Tech Community College
 2 that provides the support necessary **to accomplish the purposes**
 3 **described in section 2 of this chapter.** ~~for:~~

- 4 (1) ~~workforce training programs, including programs designed for~~
 5 ~~the direct entry of individuals into the workforce; and~~
- 6 (2) ~~programs to enhance the skills of workers.~~

7 **(b) The board of trustees of Ivy Tech Community College shall**
 8 **do the following in its development and adoption of programs**
 9 **leading to a certificate and for workforce training programs:**

- 10 (1) **Obtain and consider comments and input from Indiana**
 11 **employers and employer organizations.**
- 12 (2) **Ensure that the programs are aligned with the primary**
 13 **purposes of Ivy Tech Community College that are specified in**
 14 **section 2 of this chapter.**

15 **(c) Subject to IC 21-22-6-10, the board of trustees of Ivy Tech**
 16 **Community College may:**

- 17 (1) **develop and adopt the appropriate education programs to**
 18 **be offered and workforce services to be provided; and**
- 19 (2) **grant appropriate certificates of achievement and**
 20 **associate degrees, including associate of applied science,**
 21 **associate of science, and associate of arts degrees, to students**
 22 **who complete prescribed and authorized courses or series of**
 23 **courses.**

24 **SECTION 10. IC 21-41-5-4 IS REPEALED [EFFECTIVE JULY 1,**
 25 **2026]. Sec. 4: Ivy Tech Community College shall help promote**
 26 **education and economic development by providing assessment and**
 27 **training services for the citizens of Indiana that include the following:**

- 28 (1) ~~Determining the skills needed for specific jobs.~~
- 29 (2) ~~Determining whether particular individuals have the skills~~
 30 ~~needed to:~~
 - 31 (A) ~~do specific jobs; or~~
 - 32 (B) ~~qualify for specific skill certifications.~~
- 33 (3) ~~Developing and delivering training programs designed to help~~
 34 ~~individuals:~~
 - 35 (A) ~~acquire the skills needed to do specific jobs;~~
 - 36 (B) ~~obtain specific skill certifications; or~~
 - 37 (C) ~~improve the quality of the individual's work product.~~

38 **SECTION 11. IC 21-41-5-5 IS REPEALED [EFFECTIVE JULY 1,**
 39 **2026]. Sec. 5: Ivy Tech Community College shall meet the needs of**
 40 **state and local officials, employers, and labor organizations by**
 41 **designing and delivering educational and training courses and**
 42 **programs. The primary objective of this effort is to provide economic**



1 and workforce development support to the state's employers and
 2 communities by meeting their needs for better educated and trained;
 3 more productive; and more competitive employees and citizens.

4 SECTION 12. IC 21-41-5-8 IS REPEALED [EFFECTIVE JULY 1,
 5 2026]. Sec. 8: (a) Subject to IC 21-22-6-10, the board of trustees of Ivy
 6 Tech Community College may develop and adopt the appropriate
 7 education programs to be offered and workforce services to be
 8 provided:

9 (b) The board of trustees of Ivy Tech Community College shall do
 10 the following in its development and adoption of programs leading to
 11 a certificate and for workforce training programs:

12 (1) Consider findings and recommendations concerning
 13 workforce needs and training and education needs that are
 14 submitted by advisory committees under section 14 of this
 15 chapter:

16 (2) Obtain and consider comments and input from Indiana
 17 employers and employer organizations:

18 (3) Ensure that the programs are aligned with the primary
 19 purposes of Ivy Tech Community College that are specified in
 20 section 3 of this chapter:

21 SECTION 13. IC 21-41-5-9 IS REPEALED [EFFECTIVE JULY 1,
 22 2026]. Sec. 9: The board of trustees of Ivy Tech Community College
 23 may grant appropriate certificates of achievement and associate
 24 degrees, including associate of applied science, associate of science,
 25 and associate of arts degrees, to students who complete prescribed and
 26 authorized courses or series of courses:

27 SECTION 14. IC 21-41-5-10, AS AMENDED BY P.L.169-2007,
 28 SECTION 29, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 29 JULY 1, 2026]: Sec. 10. The board of trustees of Ivy Tech Community
 30 College may do the following:

31 (1) Initiate, promote, inaugurate, and develop occupational and
 32 technical education programs and appropriate workforce
 33 development, assessment, and training services in a manner
 34 consistent with sections 2 through 4 3 of this chapter.

35 (2) Operate either through committee or through subordinate
 36 corporate entities, statewide general, liberal arts, occupational,
 37 and technical education programs, that in the board's opinion
 38 should be established due to:

39 (A) the specialized nature of the programs;

40 (B) the limited number of students involved; or

41 (C) other unique features requiring special attention.

42 (3) Contract with appropriate education institutions, including



1 local public schools or other agencies, to carry out specific
2 programs that can best and most economically be provided
3 through this approach.

4 SECTION 15. IC 21-41-5-11 IS REPEALED [EFFECTIVE JULY
5 1, 2026]. Sec. 11: Ivy Tech Community College may enter into the
6 contracts that are necessary to provide equipment for a data processing
7 school on or off the premises of:

8 (1) Ivy Tech Community College; or

9 (2) any of the college's campuses.

10 SECTION 16. IC 21-41-5-15 IS REPEALED [EFFECTIVE JULY
11 1, 2026]. Sec. 15: Before November 1, 2016, and each November 1
12 thereafter, Ivy Tech Community College shall provide the budget
13 committee the following information for each of Ivy Tech Community
14 College's owned or operated campus locations or sites that offer
15 ongoing academic programs and services:

16 (1) The number of students enrolled;

17 (2) The amount of square feet of each building;

18 (3) The operating or overhead costs associated with the campus
19 location or site.

